

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 24, 2026, AT 8:30 A.M.

In sum, the demurrer is sustained with leave to amend as to the second, third, fourth, and fifth causes of action. Plaintiffs shall file and serve an amended complaint on or before October 5, 2026.

Defendant Granlibakken Management Company, Ltd.'s Motion to Strike Portions of Plaintiff's Complaint

Defendant's motion to strike is denied as moot in light of the court's ruling sustaining the demurrer with leave to amend.

10. S-CV-0056771 HAMMICK, JAMES v. VERNON, JEFFREY

The motion to compel initial special interrogatories, motion to compel initial requests for production of documents, and motion to deem requests for admissions admitted are continued to **November 12, 2026, at 8:30 a.m. in Department 3.**

11. S-CV-0057471 916 FLOORS v. TESLA

Defendant's Motion to Compel Binding Arbitration

Preliminary Matters

Defendant's request for judicial notice is granted.

Ruling on Motion

Defendant moves to compel plaintiffs to arbitration.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)

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A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then “bears the burden of proving by a preponderance of the evidence any fact necessary to its defense” including evidence challenging the acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the opposing party meets its burden of production, then the moving party must establish with admissible evidence a valid arbitration agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–66.) “[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant meets its initial burden that an agreement to arbitrate exists between plaintiffs and defendant that involves interstate commerce. As such, the burden shifts to plaintiffs.

Plaintiffs do not oppose the motion to compel arbitration and thus do not meet their burden to establish any defenses.

Based on the foregoing, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant’s motion to compel arbitration is granted. The action shall be stayed pending completion of the arbitration. The court schedules this matter for an Order to Show Cause re status of arbitration on Thursday, February 18, 2027, at 9:00 a.m. in Department 3.